Master Data Processing Agreement (DEMO DATA â fictional contract)

This is a wholly fictional agreement between two fictional companies,

written only to demonstrate ClauseTrace. It creates no legal obligations.

1 Parties

This Master Data Processing Agreement is entered into by Beacon Retail Pvt Ltd ("Beacon", the Data Fiduciary) and Stratus Analytics Pvt Ltd ("Stratus", the Data Processor), both fictional companies incorporated in India.

2 Definitions

"Personal Data" means data about an individual who is identifiable by or in relation to such data. "Processing" means any operation performed on Personal Data, including collection, storage, analysis and erasure. "Breach" means any unauthorised access to or loss of Personal Data.

3 Scope of processing

Stratus shall process Personal Data only for order fulfilment and delivery updates on Beacon’s retail platform, and for no other purpose unless this agreement is amended in writing.

4 Purpose limitation

Stratus shall not use Personal Data for advertising, profiling or any purpose incompatible with order fulfilment and delivery updates. Any new purpose requires Beacon’s prior written approval.

5 Data categories

The Personal Data covered are customer name, contact details, delivery address and order history. Stratus shall not collect or retain any data beyond what these categories require.

6 Security safeguards

Stratus shall protect Personal Data with encryption in transit and at rest, role-based access control, and continuous logging and monitoring of access. Stratus shall review these measures at least once a year and fix gaps without delay.

7 Processor engagement

Stratus acts only on Beacon’s documented instructions and only under this valid contract. Stratus shall not appoint a sub-processor without Beacon’s prior written consent, and shall flow these obligations down to any approved sub-processor.

8 Sub-processors

The approved sub-processors are listed in Schedule 1. Stratus shall inform Beacon before any change to that list and shall remain fully responsible for every sub-processor’s compliance.

9.1 Cross-border transfers, general

Stratus shall not transfer Personal Data outside India except under clause 9.2 and only with safeguards that keep the data protected to the same standard as within India.

9.2 Cross-border transfer for fraud screening

Stratus may transfer order data to its analytics cluster outside India for fraud screening. Such transfers are limited to order identifiers and risk scores, and Stratus shall keep transfer logs for review.

10 Breach intimation

On becoming aware of a Breach, Stratus shall intimate Beacon within twenty-four hours with a description of the breach and its likely impact. Beacon shall then intimate the Board and each affected individual, with full updated details within seventy-two hours.

11 Retention and erasure

Stratus shall erase Personal Data when Beacon requests it, when consent is withdrawn, or when the purpose is served, unless retention is required by law. Stratus shall retain processing logs for a minimum period of one year and shall cause its sub-processors to erase data likewise.